

SENATE BILL 1291

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 4, Part 10, relative to tuition assistance for
members of the Tennessee national guard.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-4-1003, is amended by adding
the following as new subdivisions:

() "Mandatory fees" means fees incurred by all students attending an
educational institution; including, but not limited to:

- (A) Parking fees;
- (B) Technology fees; and
- (C) Library fees;

() "Master's degree program fees":

(A) Means fees charged by an educational program or educational
institution for a student to attend a master's degree program; and

(B) Does not include tuition;

() "Undergraduate course fees":

(A) Means fees charged by an educational program or educational
institution for a student to attend an undergraduate course; and

(B) Does not include tuition;

SECTION 2. Tennessee Code Annotated, Section 49-4-1004(b), is amended by
deleting the subsection and substituting instead the following:

(b) Upon successful application by the eligible member attending a public
educational institution, the department of military shall pay the educational institution an

amount equal to one hundred percent (100%) of the maximum resident in-state tuition and, in an amount determined annually by the department of military's policy, undergraduate course fees or master's degree program fees charged by the educational institution attended for the educational program to which the member successfully applied, less all other state or federal financial assistance as described in § 49-4-1005. Such financial assistance must be credited first to the member's tuition, subject to § 49-4-1005.

SECTION 3. Tennessee Code Annotated, Section 49-4-1005, is amended by adding the following as a new subdivision (9) and redesignating the current subdivision (9) and subsequent subdivisions accordingly:

(9) A member is ineligible for tuition reimbursement pursuant to this part if the member is suspended from receiving federal tuition assistance due to academic performance or recoupment;

SECTION 4. Tennessee Code Annotated, Section 49-4-1005(3), is amended by deleting "one hundred twenty (120) semester hours" wherever it appears and substituting "one hundred thirty (130) semester hours".

SECTION 5. Tennessee Code Annotated, Section 49-4-1005(3), is amended by deleting "or eight (8) full-time equivalent semesters".

SECTION 6. Tennessee Code Annotated, Section 49-4-1005(3), is amended by deleting subdivision (B), adding "or" at the end of subdivision (A), and redesignating subdivision (C) as subdivision (B).

SECTION 7. Tennessee Code Annotated, Section 49-4-1005(11), is amended by deleting the subdivision and substituting:

(11) Members must submit an application for tuition reimbursement under this part within forty-five (45) days of course completion.

SECTION 8. Tennessee Code Annotated, Section 49-4-1008, is amended by deleting the section.

SECTION 9. If a provision of this act or its application to a person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 10. This act takes effect upon becoming a law, the public welfare requiring it.